CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, July 10, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, July 10, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Sherelean Bass, and Commissioner Joseph L. Kelley. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Burnadette Norris-Weeks, and Assistant City Clerk Sherine Bullock. Commissioner Alvin Burke arrived at 7:03 p.m.

3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-1 (Commissioner Kelley); deferred 15-1 through 15-7 until the next Regular Commission Meeting on July 24, 2019 (Acting City Manager Daughtrey).

7. APPROVAL OF AGENDA:

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes

Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – June 26, 2019

It was moved by Commissioner Kelley, seconded by Commissioner Bass to approve the minutes from the Regular Commission Meeting of June 26, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara J. Jordan's Office, District I, said he does not have anything for the commission at this time, but will take any concerns they may have back to the commissioner.

Louis Antoine, Commissioner Jean Monestime's Office, District II, said it is his privilege to be here tonight and will be the new representative for Commissioner Monestime's Office. During the last meeting, Melonie Burke took notice of several concerns including the mosquito breeding at 3120 NW 131st Street, Opa-locka, Florida, and the flooding on 131st Street between 22nd Avenue and 27th Avenue. He sent inspectors out to check the area and they reported that there were no mosquitos and no flooding. He drove out to the area after the last heavy rain and observed that there was indeed a lot of flooding. He reported it to the Public Works Department for the county and was told that the area falls under the city and not the county. He invited all of the residents to the 1st Annual Mango Festival to be held at Oak Grove Park on July 20, 2019 from 12:00 p.m. – 7:00 p.m.

Commissioner Kelley said that Ingram Terrace Apartments belong to the county and when it rains the water rolls down into the streets and causes the flooding. He asked for District II representatives to work with the City to resolve the issue.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Brian Dennis, 821 NW 54th Street, Miami, FL, said in the past there was a shell game going on and decisions were being made through the number two person in several departments; this was also done in the police department who is holding on to officers who should no longer be there, but the PBA makes it hard to remove them.

Bernard Poitier, Jr., 1275 NW 58th Street, Miami, FL, said his goal is to launch a talk show in the City based on health, wellness, fitness, and nutrition.

Pastor Rogery Adams, Mount Zion AME Church, 15250 NW 22nd Avenue, Opa-locka, FL, said the church started a prayer initiative a few weeks ago because of all of the senseless gun violence that has been going on in the Opa-locka and Miami Gardens area. The prayer will be held every Thursday at 7:00 p.m. at the church.

(Inaudible), 13851 NW 27th Avenue, Opa-locka, FL, said he owns a business at the address and has been having water bill issues for the last three years to no avail. The City has a problem with the water bills and it needs to be resolved.

Tamara Dupace, Glorietta Apartments, Opa-locka, FL, introduced herself to the commission and said she is the new property manager for the complex and will be doing what she can to work with the tenants to improve the living conditions.

Natasha Ervin, 670 Dunad Avenue, Opa-locka, FL, said she has an issue with directors who do not come from behind their desks and hold employees accountable for not doing their jobs. Potholes are being filled while others are being overlooked that are in the same vicinity. Also, the signs that were taken down a few years ago need to be put back up so the residents can know when community outreach events are taking place, even if it is to temporarily advertise upcoming activities.

Velma Eason, 1846 NW 143rd Terrace, Opa-locka, FL, said she lives in Sailboat Cove and parts of the lot look bad. She has been to commission meetings several times to report this, but nothing is being done about it. She asked the City to look into the matter and see what can be done to fix the current problem.

Shanice Crowder, 1231 Sharazad Blvd, #6, Opa-locka, FL, said Sharazad Blvd is being used like a race track because everyone is speeding and it is dangerous for older people and children. The lights also need to be addressed as it is too dim at night.

Commissioner Kelley thanked Pastor Adams for coming.

Vice Mayor Davis thanked Ms. DuPace for coming and introducing herself and said he will be working with her in the future regarding the tenant's issues at Glorietta Apartments.

Commissioner Bass said she looks forward to working with Pastor Adams.

Mayor Pigatt asked the employees to work on the issues raised by the citizens and come to a resolve by holding staff accountable with their jobs.

Commissioner Burke asked the manager and the attorney to reach out to the applicants in the future if there will be any delays or deferrals with agenda items.

Attorney Norris-Weeks said that falls under the purview of the city manager and not her office.

12. ACTION ITEMS:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ISSUING A WATER BILL RELEASE OF LIEN ON ACCOUNT #03348-01, FOR 4PLEX, LLC, AS OWNER, FOR CONSIDERATION OF SEVENTEEN

HUNDRED DOLLARS ($1,700.00) PREVIOUSLY PAID, AUTHORIZING THE CITY MANAGER TO EXECUTE AND RECORD SAID RELEASE OF LIEN; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley said he does not know how this kind of reduction took place. He said there was a significant amount of monies owed and for it to be at this small amount, something is wrong.

Attorney Norris-Weeks announced for the record that this happened under the previous administration and not this one.

Vice Mayor Davis asked what the options were since an amount was already agreed upon.

Attorney Norris-Weeks said at this point the check has already been paid and they are only waiting on the release of lien.

Commissioner Bass said policy and procedures are in place to prevent this from happening and staff needs to follow through with it.

Mayor Pigatt said he is happy the county is now handling the billing side of the water accounts and they will now be able to move the City forward.

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

13. CONSENT AGENDA:

14. NEW ITEMS:

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE FINAL SITE PLAN REVIEW REQUEST BY CENTERPOINT PROPERTIES TRUST, TO CONSTRUCT A TRACTOR TRAILER TRUCK PARKING FACILITY ON THE VACANT LOT IDENTIFIED BY FOLIO 08-2129-018-0010 AND 30-2129-018-0010 IN THE I-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE DEVELOPMENT AGREEMENT WITH CENTERPOINT PROPERTIES TRUST TO CONSTRUCT A TRACTOR TRAILER TRUCK PARKING FACILITY ON THE VACANT LOT IDENTIFIED BY FOLIO 08-2129-018-0010 AND 30-2129-018-0010 IN THE I-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; AND PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE FINAL SITE PLAN REVIEW REQUEST BY FLORIDA INDUSTRIAL PROPERTIES EIGHT, LLC., FOR THE CONSTRUCTION AND OPERATION OF A TRACTOR TRAILER TRUCK VEHICLE PARKING FACILITY ON THE PROPERTY LOCATED AT 4480 NW 128TH STREET ROAD IDENTIFIED BY FOLIO 08-2129-005-1470, 08-2129-005-1590, 08-2129-005-1600, 08-2129-005-1600, 08-2129-005-1610, AND 08-2129-005-1620 IN THE I-3 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE SPECIAL EXCEPTION REQUEST BY FLORIDA INDUSTRIAL PROPERTIES EIGHT, LLC., TO ALLOW THE RETAIL SALE OF DIESEL GAS FOR THE OPERATION OF A TRACTOR TRAILER TRUCK VEHICLE PARKING FACILITY ON THE PROPERTY LOCATED AT 4480 NW 128TH STREETROAD IDENTIFIED BY FOLIO 08-2129-005-1470, 08-2129-005-1600, 08-2129-005-1610, AND 08-2129-005-1620 IN THE I-3 ZONING DISTRICT; PROVIDING FOR APPROVAL, PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OFOPA-LOCKA, FLORIDA, APPROVING THE DEVELOPMENT AGREEMENT BY FLORIDA INDUSTRIAL PROPERTIES EIGHT, LLC., FOR THE CONSTRUCTION AND OPERATION OF A TRACTOR TRAILER TRUCK VEHICLE PARKING FACILITY ON THE PROPERTY LOCATED AT 4480 NW 128TH STREET ROAD IDENTIFIED BY FOLIO 08-2129-005-1470, 08-2129-005-1590, 08-2129-005-1600, 08-2129-005-1610 AND 08-2129-005-1620 IN THE I-3 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ARROVING THE FINAL SITE PLAN REVIEW REQUEST BY SHAWN JIVANI C/O MIAMI OPA LOCKA BUSINESS PARK, LLCTO CONSTRUCT AN EIGHT STORY MIXED-USE COMMERCIAL/INDUSTRIAL BUILDING ON THE PROPERTY LOCATED AT THE CORNER OF NW 147TH STREET AND NW 22ND AVENUE IDENTIFIED BY FOLIO 08-2122-025-0270 IN THE B-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE DEVELOPMENT AGREEMENT REQUEST BY SHAWN JIVANI C/O MIAMI OPA LOCKA BUSINESS PARK LLC TO CONSTRUCT AN EIGHT STORY MIXED-USE COMMERCIAL/INDUSTRIAL BUILDING ON THE PROPERTY LOCATED AT THE CORNER OF NW 147TH STREET AND NW 22ND AVENUE IDENTIFIED BY FOLIO 08-2122-025-0270 IN THE B-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolutions were deferred by the sponsor until the July 24, 2019 regular commission meeting.

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING TO CLOSE, VACATE AND ABANDON THE ALLEYS LOCATED BETWEEN THE PARCELS BOUNDED BY SUPERIOR STREET, NW 27TH AVENUE AND OPA-LOCKA BOULEVARD PURSUANT TO ORDINANCE 14-02, FOR THE CONSTRUCTION OF A RETAIL CENTER ON THE PROPERTIES IDENTIFIED BY FOLIOS: 08-2121-007-2650, 08-2121-007-2660, 08-2121-007-2670, 08-2121-007-2680, 08-2121-007-2690, 08-2121-013-2010 AND 08-2121-013-2020 AS INDICATED ON THE SITE PLAN IN THE B-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing.

Robert Holland of Holland & Knight, 701 Brickell Avenue, Miami, FL, said he is there on behalf of his client and they have met and have received affidavits from all of the investors and hopes the City will allow them to obtain the property.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Commissioner Kelley for discussion.

Commissioner Burke said he welcomes all developers who want to come into the City for business, but he is not in favor of giving away any of the City's properties for free; they do however have the option to purchase the land.

Commissioner Kelley said he does not understand why this item is still on the agenda and had not been deferred with the others.

Planning & Community Development Director Gregory Gay said the item was separated from all of the other items because it requires two readings for any action to be taken. Once that happens, then they will move forward, but this vacation has to take place first. He said none of the items that were deferred tonight are related to this application. Those items will come back after first reading tonight.

Mayor Pigatt said when he saw this item; he was excited as it will allow for big box restaurants to come into the City. He wants to ensure that all of the i's are dotted and all of the t's crossed with this item.

Acting City Manager Daughtrey said the first reading tonight will allow them to do what they need to do and move forward.

Commissioner Kelley said that while he has the utmost respect for Mr. Holland, he cannot move forward with the item at this time in this fashion.

Mayor Pigatt asked that the item be deferred so it may be brought back for those of his colleagues who may have concerns.

This item was deferred by the sponsor.

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING TO CLOSE, VACATE AND ABANDON THE ALLEYS LOCATED BETWEEN THE PARCELS BOUNDED BY SUPERIOR STREET, NW 27TH AVENUE AND OPA-LOCKA BOULEVARD PURSUANT TO ORDINANCE 14-02, FOR THE CONSTRUCTION OF A RETAIL CENTER ON THE PROPERTIES IDENTIFIED BY FOLIOS: 08-2121-007-2650, 08-2121-007-2660, 08-2121-007-2670, 08-2121-007-2680, 08-2121-007-2690, 08-2121-013-2010 AND 08-2121-013-2020 AS INDICATED ON THE SITE PLAN IN THE B-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke to pass the ordinance.

There being no discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

B. RESOLUTIONS/PUBLIC HEARINGS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey acknowledged that it was forty nine years ago today that he left the Marine Corps. He said the county will have taken over ninety six percent (96%) of the water accounts by the end of this month. The City is continuing to stop the leaks around the City so it can save on the money it is paying to the county. The City thought it would receive almost two million dollars ($2,000,000.00) from the tax roll, but in actuality, it was over four hundred thousand dollars ($400,000.00) that was reported from the county. He said the auditor general spent almost two years in the City and they will come back in eighteen months to see if the 99 Findings that they compiled have been corrected and the City is in compliance. The City has to remain in a no deficit spending to get out of the financial emergency it is currently in. They also need to deal with the fifty year old pipes that are underground that could cause an issue if the infrastructure is not updated.

Vice Mayor Davis asked how the lighting concerns are being addressed because it has come up in the past.

Acting City Manager Daughtrey said the City submits a ticket whenever there are lighting issues and it is addressed accordingly.

Vice Mayor Davis said he hopes that a safe environment is maintained for the community and all of the lights are in working order.

Commissioner Kelley commended the manager and his staff for the work they have been doing and the update that was provided to the commission and the public at the workshop last week. He said he hopes that the 99 Findings are addressed and the issues that need handling stays on the managers radar.

Acting City Manager Daughtrey said it will cost an additional five hundred thousand dollars to complete Cairo Lane. The City will have to pay upfront and be reimbursed through the state revolving loan fund.

Mayor Pigatt commended the manager for his years of service with the Marines. He asked for a report on the water bill transition, the operational audits, and the drainage pipes. He impressed upon the manager to provide these things along with the solutions and the timeline for how they will be addressed. The City needs to be able to tell the residents exactly what is going on.

18. OFFICIAL BOARD REPORTS:

Community Relations, Recreation and Activities Board Member Natasha Ervin said that the board met on yesterday and was disappointed that only one student applied for the Educational Scholarship Program. They do not think enough people were aware of the program and that is why there aren't any applicants. She asked the commission to extend the deadline for the award to allow for more students to apply. There is a big issue with communication in the City and getting the word out when things are going on.

Commissioner Burke asked if it was fair to keep the one applicant waiting while the City extends the program to others.

Mrs. Ervin said school does not start until August and whenever scholarships are given, it generally would go directly to the school so the funds will be available for use.

Commissioner Bass said the legislative aide did reach out to the high schools and informed them of the program so they were aware.

Commissioner Kelley asked the attorney to prepare a resolution for the next commission meeting to award a scholarship to the recipient who applied for the program within the timeframe. He also asked for Robo Calls to be sent out so that everyone can receive the information.

A motion was made to extend the deadline for the Educational Scholarship Program to July 31, 2019.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the motion.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

19. MAYOR/COMMISSION REPORT:

Commissioner Burke said he attended a meeting last night for the Greater Miami Tourism Board and it was interesting. They spoke well of the City and made mention of the Moorish architecture that draws in visitors to the City and also said the City should have signature events annually that also attracts visitors.

Commissioner Bass announced that the last Friday of every month is Community Bingo and also the commission will be partnering with the Parks and Recreation Department and the Bold Women of Zion to host the annual book bag giveaway on Saturday, July 27, 2019 from 1:00 p.m. – 5:00 p.m.

Commissioner Kelley announced the monthly Movie Night on the lawn of the historic city hall; Meet Me Monday was held on this past Monday at new Mount Pleasant Baptist Church; Walk In Wednesday is held every Wednesday on the 4th floor of city hall. There will be a special needs book bag giveaway that will be held on August 3, 2019 from 12:00 p.m. – 4:00 p.m. There will be a cleanup project for Ingram Parks reopening and the community will be invited to come and help with the efforts on August 12, 2019.

Mayor Pigatt said that as mayor, one of his focuses has been compliances and accountability within the City. This includes the water bills, the filling of the potholes, and the flooding around the City. He would like to give updates so the residents can be informed, but he needs the information to do so. There are several board seats that have not been filled and he encouraged the residents to go to the Office of the City Clerk and apply.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Vice Mayor Davis, seconded by Commissioner Burke to adjourn the meeting at 8:38 p.m.

MAYOR

ATTEST:

CITY CLERK